2176

Executive Order

CACHE NATIONAL FOREST

IDAHO & UTAH.

Under authority of the Act of Congress approved June 4, 1897 (30 Stat., 11, 34–36), and on the recommendation of the Secretary of Agriculture, it is hereby ordered that the boundaries of the Cache National Forest, as modified by the Proclamation of January 24, 1912, be further modified by eliminating therefrom the following described lands, in the States of Idaho and Utah:

In T. 9 S., R. 41 E., Sec. 17: E½ SE¼; Sec. 22: S½ NW¼ and N½ SW¼, and unsurveyed lands which by protraction of the public survey in said township would probably be the E½ NE¼ Sec. 20, N½ and N½ SE¼ Sec. 21.

In T. 12 S., R. 41 E., Sec. 28: N½, and unsurveyed lands which by protraction of the public survey in said township would probably be the N½ and SW¼ Sec. 15.

In T. 13 S., R. 41 E., Sec. 27: NE¼ NE¼ and S½ NE¼, and unsurveyed lands which by protraction of the public survey in said township would probably be the W½ SW¼ Sec. 4 and W½ NW¼ Sec. 9.

In T. 15 S., R. 41 E., Sec. 19: E½; Sec. 30: NE¼, E½ SE¼, NW¼ SE¼; Sec. 31: NE¼ NE¼, S½ NE¼ and SE¼.

Unsurveyed lands which by protraction of the public survey in T. 13 S., R. 43 E., would probably be the E½ of E½ of Secs. 1 and 12, T. 13 S., R. 42 E.

In T. 14 S., R. 42 E., unsurveyed lands which by protraction of the public survey in said township would probably be the E½ of Secs. 1 and 12.

In T. 14 S., R. 43 E., Sec. 32: W½ and SE¼.

In T. 15 S., R. 43 E., unsurveyed lands which by protraction of the public survey in said township would probably be the S½ NE¼ and SE¼ Sec. 20.

In T. 16 S., R. 43 E., unsurveyed lands which by protraction of the public survey in said township would probably be Lots 1, 2, and 3, E½ SW¼ and SE¼ Sec. 4; E½ and E½ of W½ of Secs. 9, 16, 21 and 28:

Boise Meridian.

In T. 11 N., R. 3 E., Sec. 25: S½, and Sec. 36:

Salt Lake Meridian.

It appearing proper and necessary, in the interest of equal opportunity and good administration, that all of such excluded lands subject to disposition should be restored to settlement in advance of entry, it is hereby ordered, pursuant to the authority reposed in me by the Act of September 30, 1913 (38 Stat., 113), that such lands, subject to valid rights and the provisions of existing withdrawals, shall be open to actual settlers only under the provisions of the homestead laws for a period of twenty-eight days from and including 9 o'clock a. m., standard time, on the sixty-third day from and after the date of this order, and thereafter to entry and disposition under any and all of the public land laws applicable thereto: Provided, that the rights of the State of Idaho under the provisions of the Act of March 3, 1893 (27 Stat., 592), and the rights of the State of Utah under the Act of August 18, 1894 (28 Stat., 394), shall not be abridged in so far as any of such lands are affected thereby. Unsurveyed lands are not subject to the provisions of said

act of March 3, 1893, but in the absence of a prior valid adverse right, the preference accorded the State of Idaho thereby, where the township has been surveyed and the plat thereof filed while the lands were reserved for forestry purposes, will attach immediately upon the signing of this order, and the State of Idaho shall have sixty days from the date hereof within which to make its selections. Where lands were withdrawn under the provisions of the aforesaid act of August 18, 1894, and the township has been surveyed and the plat thereof filed while the lands were withdrawn for forestry purposes, and there are no subsisting rights under settlement begun prior to withdrawal of the lands upon the State's application to survey, or otherwise, the State of Utah shall have sixty days from date hereof within which to make its selection.

Persons who go upon any of the lands to be restored hereunder and perform any act of settlement thereon from and including the date of this order until 9 o'clock a. m., standard time, on the sixty-third day from and after the date hereof, or who are on or are occupying any part of such lands at said hour, except those having valid subsisting settlement rights initiated prior to reservation and since maintained, will be considered and dealt with as trespassers and preference will be given the prior legal applicant, notwithstanding such unlawful settlement or occupancy: Provided, however, that nothing herein shall prevent persons from going upon and over the lands to examine them with a view to thereafter going upon and making settlement thereon in accordance with this order. Persons having prior settlement rights, as above defined, will be allowed to make entry in conformity with existing law and regulations.

WOODROW WILSON

THE WHITE HOUSE,
21 April, 1915.

[No. 2176.]